

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 658

BY LOCAL GOVERNMENT COMMITTEE

AN ACT

RELATING TO CEMETERY MAINTENANCE DISTRICTS; AMENDING SECTION 27-110, IDAHO CODE, TO REVISE PROVISIONS REGARDING VACANCIES ON CEMETERY MAINTENANCE BOARDS OF COMMISSIONERS; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 27-110, Idaho Code, be, and the same is hereby amended to read as follows:

27-110. TERM OF OFFICE -- VACANCIES. (1) At the meeting of the board of county commissioners at which the cemetery maintenance district is declared organized, as provided by section 27-108, Idaho Code, said board of county commissioners shall divide the cemetery maintenance district into three (3) subdivisions, as nearly equal in population, area and mileage as practicable, to be known as cemetery maintenance commissioners subdistricts one, two and three. Not more than one (1) of said commissioners shall be an elector of the same cemetery maintenance subdistrict. The first commissioners appointed by the board of county commissioners shall serve until the next cemetery maintenance district election, at which their successors shall be elected. Any vacancy occurring in the office of the cemetery maintenance commissioner, other than by the expiration of the term of office, shall be filled by the cemetery maintenance board.

(2) If it is determined that the cemetery maintenance board lacks enough commissioners to achieve a quorum to fill a vacancy due to death, resignation, or other circumstances other than the expiration of a term, the board of county commissioners with jurisdiction over a majority of the cemetery maintenance district area shall fill by appointment the minimal number of vacancies necessary to achieve an odd-numbered quorum. Such appointments shall be for the duration of the respective term. Appointees shall be selected from the respective cemetery maintenance subdistricts and shall:

(a) Be qualified electors of their respective subdistricts;

(b) Have lived in their cemetery maintenance district for at least one

(1) year; and

(c) Be current on the payment of their property taxes.

(3) If there are no qualified applicants from the respective cemetery maintenance subdistrict, then appointments may be made from qualified applicants living anywhere within the cemetery maintenance district boundaries.

(4) The board of county commissioners shall solicit qualified applicants for appointment to commissioner vacancies for the cemetery maintenance district via all forms of public communication utilized by such board of county commissioners. The board shall notify any other county or city with jurisdiction over any area of the cemetery maintenance district of such

1 vacancies to allow such entities to recommend qualified applicants for ap-
2 pointment.

3 (5) Moneys belonging to a cemetery maintenance district, if available,
4 may be used for soliciting applicants for appointment to vacancies as pro-
5 vided under this section. If a quorum is established, then within thirty
6 (30) days of such date, the cemetery maintenance district shall reimburse
7 the board of county commissioners any moneys used for such solicitation.

8 (6) The board of county commissioners shall implement a process for so-
9 liciting applicants within one (1) month after a cemetery maintenance board
10 cannot achieve an odd-numbered quorum as described in subsection (2) of this
11 section or within one (1) month after July 1, 2026, whichever occurs later.
12 Such board shall make appointments from the pool of qualified applicants
13 within three (3) months from the date the board implements the process for
14 soliciting applicants.

15 (7) The board of county commissioners shall temporarily assume the du-
16 ties and obligations of a cemetery maintenance board in the absence of an
17 odd-numbered quorum of such board until either such a quorum is established
18 or dissolution occurs. The board shall conduct necessary business during
19 this period, including but not limited to paying employees, performing ur-
20 gent maintenance, and tending to any other necessary matters, and shall use
21 cemetery maintenance district funds to conduct such business.

22 ~~(2)~~ (8) A cemetery maintenance district created from the consolidation
23 of two (2) or more cemetery maintenance districts as provided in section
24 27-129, Idaho Code, may operate with five (5) cemetery maintenance commis-
25 sioners subdistricts.

26 SECTION 2. An emergency existing therefor, which emergency is hereby
27 declared to exist, this act shall be in full force and effect on and after
28 July 1, 2026.